

Before the
FEDERAL MARITIME COMMISSION

Docket No. 23-02

BED BATH & BEYOND, INC.
v.
ORIENT OVERSEAS CONTAINER LINE LIMITED
AND OOCL (EUROPE) LIMITED

CORRECTED MOTION FOR RECONSIDERATION

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”), by and through their undersigned counsel, respectfully submit this Motion for Reconsideration of the Presiding Officer’s Order of August 23, 2024, insofar as it granted the motion of Complainant Bed Bath and Beyond’s (“Complainant” or “BBBY”) motion for leave to file an amended complaint.¹ The basis for this motion, elaborated below in Respondent’s Memorandum in Support, is that the Presiding Officer’s decision has been superseded by, and is inconsistent with, the Commission’s intervening decision in *OJ Commerce, LLC v. Hamburg Sud*, Docket No. 21-11 (Order Affirming Initial Decision), slip op., August 27, 2024.

MEMORANDUM IN SUPPORT

1. **Standards for Reconsideration.** The FMC's Rules do not specify any standards for reconsideration of interlocutory orders by the Presiding Officer (although they do

¹ As required by the Presiding Officer’s August 23, 2024 Order, Respondents are today filing an amended Verified Answer, conditioned upon the denial of the instant Motion.

for reconsideration of final Commission orders).² Accordingly, Presiding Officers have substantial authority to flexibly reconsider their decisions prior to issuance of the Initial Decision. As the Commission explained in *Tractors and Farm Equipment, Ltd v. Waterman Steamship Corp.*, 25 F.M.C. 375, 377 n. 9 (FMC 1982), for example: “A presiding officer may properly reconsider and reverse interlocutory rulings made prior to the initial decision, whether those rulings are made by him or her or by a previously assigned [ALJ].” To like effect see *Carolina Marine Handling, Inc. v. South Carolina State Ports Authority*, FMC Docket No. 99-16, 2002 FMC LEXIS 13 at *2 (ALJ, 2002) (also available at <https://www2.fmc.gov/readingroom/docs/99-16/5C71A1D2A982400B817848274F888BEE.pdf/>).

2. **Argument.** In the *OJ Commerce* proceeding, above, the Presiding Officer held that the complainant had sufficiently pleaded a claim for retaliation under 46 U.S.C. 41104(a)(3),³ because complainant had alleged that it had, before the assertedly retaliatory acts, sent two formal letters to respondent, Hamburg Sud, each of which contained an overt threat to file a complaint at the FMC. In the Initial Decision, she concluded that Hamburg Sud had in fact retaliated.

In affirming the Initial Decision, the Commission explicitly recognized that the Presiding Officer had expanded the nature of the actions that might be taken as a predicate to a retaliation

² We note however that reconsideration would be appropriate even under the standards applicable to Commission final decisions, as they provide for reconsideration where there has been a change in applicable law. 46 C.F.R. 502.261.

³ Prohibition against “retaliat[ing] against a shipper by refusing, or threatening to refuse, cargo space accommodations when available, or resort to other unfair or unjustly discriminatory methods because the shipper has patronized another carrier, or has filed a complaint, or for any other reason...”

claim, but concluded that her extremely limited expansion to formal notices of intent to file a complaint was within the outer limits of the statute:

“The ALJ’s decision does not vastly expand the types of retaliation claims the Commission will consider, it only clarified that the category includes *formal notices of an intention to file a case with the Commission*, like OJC’s notice.” Slip op. at 32 (emphasis added).

The Commission also made clear that this limited expansion applies only to formal notices of intent to file a complaint, and not to informal statements that may suggest to a carrier that a shipper might possibly file a complaint:

“Further, the Commission affirms the ALJ’s decision was appropriate for the facts of this case, which included two *formal notices* of an intention to pursue legal action. Offhand bluster or idle threats are of a different class.” Id. at 33 (emphasis added). See *id.*, at 35 (referring the expansion as “protecting notices of an intention to file a case with the Commission”).

Complainant here has not alleged – either in the original or the amended

Complaint -- that it sent Respondents any formal notice of intent to file a complaint with the FMC. At most, it suggests that some of Respondents’ employees may have been concerned about the potential for BBBY to file a complaint, which any law-abiding carrier must consider every time it takes an action that a shipper might deem adverse to it. Such concern cannot possibly fall within the limited expansion permitted by the Commission in *OJ Commerce*, which as quoted above requires formal notice of an intent to file a complaint to serve as a predicate act for a retaliation claim.

CONCLUSION

For the reasons stated above, the Presiding Officer should reconsider the Order insofar as it granted leave to file an amended complaint and should instead deny Complainant's motion to amend.

Should the Presiding Officer decide not to reconsider the Order, Respondents request that she treat this motion as a request for leave to appeal the Order to the Commission, with the Memorandum of Support to serve as Respondents' brief on appeal.

Dated: September 17, 2024

Respectfully submitted,



/s _____

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CERTIFICATE OF SERVICE

I certify that on the 17th day of September 2024, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020, as follows:

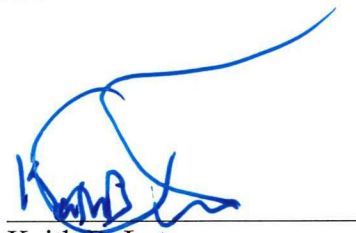
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